

Nepal Law Commission Act, 2007

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Nepal Law Commission Act, 2063 (2006)

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Amending Acts

1. Some Nepal Acts Amendment Act, 2064 (2007) 2064.5.19 (September 5, 2007)
2. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009) 2066.10.07 (January 21, 2010)
3. Some Nepal Acts Amendment Act, 2072 (2015) 2072.11.13 (February 25, 2016)
4. Some Nepal Acts Amendment to Make Compatible with the Constitution of Nepal Act, 2075 (2018) 2075.11.19 (March 3, 2019)
5. Some Nepal Acts Amendment Act, 2082 (2025) 2082.04.14 (July 28, 2025)

Act Number 37 of the Year 2063 (2006)

An Act Made to Provide for the Nepal Law Commission

Preamble: Whereas, it is expedient to establish and provide for the Nepal Law Commission for drafting legislation, codification, and amendment, consolidation, and review of prevailing laws, as well as for conducting study and research on matters relating to law and justice;

Now, therefore, in the first year of the issuance of the Proclamation of the House of Representatives, 2063 (2006), the House of Representatives has enacted this Act. 1. Short Title and Commencement: (1) This Act may be called the "Nepal Law Commission Act, 2063 (2006)."

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Commission" means the Nepal Law Commission established pursuant to Section 3.

(b) "Chairperson" means the Chairperson of the Commission.

(c) "Vice-Chairperson" means the Vice-Chairperson of the Commission.

(d) "Member" means a member of the Commission, and this term shall also denote the Chairperson, Vice-Chairperson, honorary members, and Member-Secretary.

(e) "Secretary" means the Secretary of the Commission. 3. Establishment of Nepal Law Commission: (1) There is established a Nepal Law Commission for the purpose of, among others, drafting legislation, codification, and amendment, consolidation, and review of prevailing laws, as well as conducting study and research on matters relating to law and justice.

(2) The office of the Commission shall be located in the Kathmandu Valley. 4.

Formation of the Commission: (1) The Commission shall be formed as follows:- (a) A person appointed by the Government of Nepal from among persons who have served as a Justice of the Supreme Court or who possess the qualification to become a Justice ? Chairperson. (b) A person appointed by the Government of Nepal from among persons who have served in a gazetted special class post of the Nepal Judicial Service, or who have worked as a senior advocate or advocate in the capacity of a legal practitioner for at least fifteen years, or who have acquired at least fifteen years of experience in teaching, research, drafting of law, or in the field of law or justice ? Vice-Chairperson. (c) Up to three persons nominated by the Government of Nepal from among persons possessing the qualification as per clause (b), including at least one woman ? Members. (d) Secretary, Ministry of Law, Justice and Parliamentary Affairs ? Member. (e) Secretary (Law), Office of the Prime Minister and Council of Ministers ? Member. (f) Deputy Attorney General, Office of the Attorney General ? Member. (g) Secretary ? Member-Secretary. (2) A Recommendation Committee as follows shall exist to recommend names to the Government of Nepal for the appointment and nomination of the Chairperson, Vice-Chairperson, and Members of the Commission:- (a) Minister for Law, Justice and Parliamentary Affairs ? Coordinator. Amended by the Some Nepal Acts Amendment to Make Compatible with the Constitution of Nepal Act, 2075 (2018).(b) Chairperson, Law and Human Rights Committee, House of Representatives ? Member. (c) President, Nepal Bar Association ? Member. 5. Honorary Members: The Government of Nepal may appoint up to five eminent experts from among experts related to subjects deemed necessary by the Commission as honorary members. 6. Qualification of Chairperson, Vice-Chairperson and Member: In addition to the qualifications mentioned in clause (a) or (b) of sub-section (1) of Section 4, a person must possess the following qualifications to be appointed or nominated as the Chairperson, Vice-Chairperson, or Member of the Commission:- (a) A citizen of Nepal, (b) Has completed forty-five years of age, (c) Has obtained at least a post-graduate degree in law from a university recognized by the Government of Nepal, (d) Has not been punished by a court on any criminal charge involving moral turpitude, (e) Of sound mind. 7. Term of Office of Chairperson, Vice-Chairperson and Member: (1) The term of office of the Chairperson and Vice-Chairperson shall be five years. (2) The term of office of a Member shall be two years. 8.

Provided that before removal in such manner, he/she shall not be deprived of the opportunity to submit his/her defense. 10. Functions, Duties and Powers of the Commission: The functions, duties, and powers of the Commission shall be as follows:-

- (a) To conduct or cause to conduct study and research on making new laws or amending existing laws, or on contemporary issues relating to law and justice,
- (b) To prepare drafts of necessary codes for the codification of laws and submit them to the Government of Nepal,
- (c) To consolidate or review prevailing laws and give necessary suggestions to the Government of Nepal in that regard,
- (d) To submit drafts, along with explanatory notes, to the Government of Nepal regarding the enactment of new laws and the amendment of prevailing laws as required,
- (e) To study laws that are obsolete, mutually contradictory, unequal, discriminatory, against human rights, and unenforceable, and submit suggestions to the Government of Nepal regarding the repeal, amendment, or review of such laws,
- (f) To give drafts or suggestions to the Government of Nepal to incorporate provisions of international treaties

and agreements into the prevailing laws as necessary,

(g) To consult, discuss, and interact with concerned bodies or institutions as necessary regarding the drafting, codification, consolidation, review, reform, and development of laws, or to collaborate with such bodies or institutions in that regard,

(h) To obtain the services of experts for the study and research of special types of laws and the preparation of drafts,

(i) To collect public opinions and suggestions as necessary in the law-making process,

(j) To conduct programs such as workshops, seminars, and interactions as necessary in the course of revising draft laws,

(k) To contact and exchange necessary information and details with law commissions and law-drafting bodies of other countries,

(l) To study whether laws are in accordance with the principles propounded by the Supreme Court, and if found not to be in accordance, to submit drafts to the Government of Nepal regarding the drafting, repeal, or review of laws,

(m) To prepare the annual program of the Commission,

(n) To carry out other tasks relating to law and justice as specified by the Government of Nepal or as deemed necessary by the Commission. 11.

Proceedings Relating to Meetings of the Commission: (1) A meeting of the Commission shall be held at least once a month. (2) The meeting of the Commission shall be held on the date and time fixed by the Chairperson. (3) If more than fifty percent of the total number of members of the Commission are present, it shall be deemed to constitute a quorum for the meeting of the Commission. (4) The meeting of the Commission shall be presided over by the Chairperson, in his/her absence by the Vice-Chairperson, and in the absence of both the Chairperson and Vice-Chairperson, by the senior most member of the Commission. (5) The opinion of the majority shall prevail in the meeting of the Commission, and in case of a tie, the person presiding over the meeting shall cast the deciding vote. (6) The decision of the Commission shall be certified by the Secretary. (7) The Commission may invite any expert or honorary member to participate as an observer in its meeting as required. (8) Other procedures relating to the meetings of the Commission shall be as determined by the Commission itself. 12. Functions, Duties and Powers of the Chairperson: (1) The Chairperson shall be a full-time officer of the Commission. (2) The functions, duties, and powers of the Chairperson shall be as follows:- (a) To conduct the business of the Commission in a coordinative manner, (b) To perform other tasks relating to the Commission in the capacity of Chairperson, (c) To perform tasks assigned by the Government of Nepal. 13. Functions, Duties and Powers of the Vice-Chairperson: (1) The Vice-Chairperson shall be a full-time officer of the Commission. (2) The functions, duties, and powers of the Vice-Chairperson shall be as follows:- (a) To perform tasks relating to the Commission in the capacity of Vice-Chairperson, (b) To perform the tasks to be done by the Chairperson when the Chairperson is on leave, absent, or on official duty, (c) To perform tasks assigned by the Chairperson. 14.

Remuneration and Facilities of Chairperson and Vice-Chairperson: (1) The Chairperson and Vice-Chairperson shall be entitled to remuneration and other facilities equivalent to those of a Justice of the Supreme Court and the Chief Officer of a Constitutional Body, respectively. (2) The Chairperson may himself/herself avail casual leave and festival leave, and other leave of the Chairperson shall be approved by

the Minister for Law, Justice and Parliamentary Affairs. (3) The Vice-Chairperson may himself/herself avail casual leave and festival leave, and other leave of the Vice-Chairperson shall be approved by the Chairperson. (4) In the situation as per clause (b) of sub-section (2) of Section 13, the Vice-Chairperson working as the Chairperson for more than seven days at a time shall be entitled to remuneration and other facilities equivalent to those of the Chairperson for the entire period of working as such. 15. Secretary: (1) An officer of the Special Class of the Nepal Judicial Service shall serve in the Commission as the Secretary of the Commission. (2) The functions, duties, and powers of the Secretary shall be as follows:- (a) To act as the administrative head of the Commission, (b) To organize or cause to organize the administrative business of the Commission, (c) To perform tasks required to be performed in the capacity of the departmental head pursuant to the prevailing law, (d) To convene meetings of the Commission under the direction of the Chairperson, (e) To implement or cause to implement the decisions of the Commission. 16. Provision Relating to Employees: (1) There shall be a required number of employees in the Commission. (2) The employees required for the Commission shall be provided by the Government of Nepal. 17. May Obtain Services of Experts: (1) The Commission may, as needed, obtain the services of various experts in relation to the work of the Commission. (2) An expert whose services are obtained pursuant to sub-section (1) shall be provided with an allowance as determined by the Commission. 18. May Form Committees or Task Forces: (1) The Commission may, for the purpose of carrying out any of its functions under this Act, form a committee or task force including any member and experts of the relevant subject. (2) The functions, duties, and powers, the procedures, and the allowances and facilities receivable by members of the committee or task force formed pursuant to sub-section (1) shall be as determined by the Commission. 19. Meeting Allowance: A member shall be entitled to a meeting allowance as determined by the Government of Nepal for participating in the meeting of the Commission. 20. Expenses of the Commission: The expenses required for the Commission shall be arranged by the Government of Nepal. 21.

Commission May be Engaged in Law Drafting Work: The Commission may be engaged in law drafting work as required. 22. Report to be Submitted: The Commission shall submit an annual report of its activities during the year to the Government of Nepal within sixty days from the date of expiry of the fiscal year. 23. Delegation of Powers: The Commission may, as necessary, delegate some of the powers conferred to it under this Act to the Chairperson, Vice-Chairperson, Member, Secretary, or any officer-level employee of the Commission. 24. Assistance to be Provided: Government bodies shall provide necessary assistance to the Commission in relation to its business. 25. Oath of Office: Before assuming office, the Chairperson shall take an oath in the format specified in the Schedule before the Chief Justice, and the Vice-Chairperson and Members shall take such oath before the Chairperson. 26. Contact with Government of Nepal: The Commission shall make contact with the Government of Nepal through the Ministry of Law, Justice and Parliamentary Affairs. 27. Power to Make Rules: For the purpose of implementing the objectives of this Act, the Government of Nepal may, in consultation with the Commission, make necessary rules. 28. Savings: (1) The Nepal Law Reform Commission existing at the time of commencement of this Act shall be deemed to have been formed under this Act. (2) The acts and proceedings done by the Nepal Law Reform Commission existing at the time of commencement of this Act shall be deemed to have been done by the Commission under this Act. (3) The Chairperson and Vice-Chairperson working in the Nepal Law Reform Commission at the time of commencement of this Act shall remain in office until the period specified at the time of their appointment. Amended by the Some Nepal Acts Amendment Act, 2064 (2007). Schedule (Relating to Section 25) Oath I, , do sincerely promise/swear in the name of God that I will, remaining loyal to the Nepalese people and the prevailing Constitution and other laws, faithfully and impartially discharge the responsibility and duty of the office of Chairperson/Member I have assumed, without any fear, favor, bias, malice, or greed,

and I shall not disclose any matter that comes to my knowledge in the course of discharging my duty in any capacity, whether I am holding office or not, except when required to do so under the prevailing law. Date :

Signature -